

CHAPTER 38.

An Act to make further provision with respect to University Education in Ireland. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

FOUNDATION OF TWO NEW UNIVERSITIES AND PROVISIONS AS TO QUEEN'S COLLEGES.

1.—(1) His Majesty may, if pleased to do so, by charter, found two new universities in Ireland (in this Act referred to as the new universities), those universities respectively to have their seats at Dublin and Belfast.

Foundation of two new universities in Ireland and dissolution of the Royal University and Queen's College, Belfast.

(2) The two universities shall be bodies corporate under such names respectively as His Majesty may be pleased to determine, and the governing bodies of the universities shall, until the expiration of five years from the day appointed for the dissolution of the Royal University of Ireland, consist of such number of persons nominated by His Majesty as His Majesty determines, and after the expiration of that time be constituted in manner provided by the First Schedule to this Act.

(3) The Royal University of Ireland and Queen's College, Belfast, shall be dissolved as from the appointed day.

2.—(1) His Majesty may, if pleased to do so, by charter, found a new college to have its seat at Dublin.

Colleges.

(2) The college shall be a body corporate under such name as His Majesty may be pleased to determine, and the governing body of the college shall be constituted in manner provided by the charter.

(3) Queen's College, Cork, Queen's College, Galway, and the new college having its seat at Dublin, shall be constituent colleges of the new university having its seat at Dublin, and, for the purpose of making any alterations in the constitution or government of Queen's College, Cork, or Queen's College, Galway, which the passing of this Act renders it expedient to make by charter, His Majesty may, if pleased to do so, either alter the charter existing at the time of the passing of this Act, or grant a new charter in lieu thereof, and may, if pleased to do so, alter the name of those colleges or either of them, and provision shall be made by any such new charter or alteration of an existing charter for adequate representation of graduates and professors on the governing bodies of the constituent colleges.

(4) Nothing in this section shall prevent provision being made by the charter of the new universities under which the university may give to matriculated students of the university, who are

pursuing a course of study of a university type approved by the governing body of the university in any recognised college in Ireland under teachers recognised by the governing body for the purpose, the benefit of any privileges of matriculated students of the university who are pursuing a course of study at the university, including the right of obtaining a university degree, subject to any conditions or limitations contained in the charter or statutes of the university: Provided that the university shall not give privileges under this provision to students in any college or institution in Ireland which prepares students for intermediate or other school examinations, or gives education of an intermediate or secondary kind.

Prohibition of tests.

3.—(1) No test whatever of religious belief shall be imposed on any person as a condition of his becoming or continuing to be a professor, lecturer, fellow, scholar, exhibitioner, graduate, or student of, or of his holding any office or emolument or exercising any privilege in, either of the two new universities, or any constituent college; nor in connection with either of those universities or any such constituent college shall any preference be given to or advantage be withheld from any person on the ground of religious belief.

(2) Every professor upon entering into office shall sign a declaration in a form approved by the Commissioners jointly under this Act, securing the respectful treatment of the religious opinions of any of his class.

(3) Nothing in this section shall apply to any professor of or lecturer in theology or divinity; provided that no test of religious belief shall be imposed by the governing body of either of the two new universities or any constituent college on any such professor or lecturer as a condition of his appointment or recognition by the governing body as such professor or lecturer.

Statutes for universities and colleges.

4.—(1) The statutes for the general government of the new universities and the constituent colleges of the new university having its seat at Dublin shall be made in the first instance, as respects the statutes of the new university having its seat at Dublin and the constituent colleges thereof, by the Dublin Commissioners appointed under this Act, and as respects the new university having its seat at Belfast by the Belfast Commissioners appointed under this Act, and, after the powers of these commissioners determine, by the governing bodies of the universities and colleges.

(2) The commissioners, in framing statutes under this section, shall take into consideration any representations made to them by the governing bodies of the new universities or of the constituent colleges of the new university having its seat at Dublin, as respects the statutes for those universities and colleges respectively, or by any person appearing to the commissioners to be interested in the making of those statutes or any of them.

(3) Statutes made under this section may regulate any matter relating to the government of the university or college (including the appointment and remuneration of officers) or otherwise concerning the university or college so far as that matter is not regulated under this Act or by the charter of the university or college.

5.—(1) When any statute has been made under this Act, a notice of its having been made and of the place where copies can be obtained shall be published in the Dublin Gazette, and the statute shall be laid as soon as may be before both Houses of Parliament. Statutes to be laid before Parliament.

(2) If either House of Parliament within forty days (exclusive of any period of prorogation) after a statute has been laid before it presents an address praying His Majesty to disallow the statute or any part thereof, no further proceedings shall be taken on the statute or on the part thereof to which the address relates; but this provision shall be without prejudice to the making of a new statute.

(3) The governing body of a university or constituent college to which the statute relates, or any other person, corporation, or body directly affected by the statute, may, within three months from the notification thereof in the Dublin Gazette, petition the Lord Lieutenant in Council to disallow the whole or any part thereof.

(4) The Lord Lieutenant in Council may refer any such petition to the Irish Universities Committee, with a direction that the committee hear the petitioner personally or by counsel, and report specially to the Lord Lieutenant in Council on the matter of the petition.

(5) If the committee report in favour of the disallowance of the statute or any part thereof, the Lord Lieutenant may, by Order in Council, disallow the whole or part thereof accordingly, but any such disallowance shall be without prejudice to the making of a new statute.

6.—(1) For the purposes of this Act there shall be two bodies of commissioners, styled respectively the Dublin Commissioners and the Belfast Commissioners, and any reference to commissioners in this Act shall be construed as a reference to the Dublin Commissioners, or the Belfast Commissioners, or to both bodies of commissioners, as the case requires. Establishment of commissions.

(2) The Dublin Commissioners shall be the Right Honourable Christopher Palles, Alexander Anderson, John Pius Boland, Sir William Francis Butler, Denis Joseph Coffey, Stephen Gwynn, Henry Jackson, Sir John Rhys, The Most Reverend William Joseph Walsh, Bertram Coghill Alan Windle; and the Belfast Commissioners shall be His Honour James Johnston Shaw, Samuel Dill, The Reverend Thomas Hamilton, Donald Macalister, Robert T. Martin, Sir Arthur William Rücker, Johnson Symington.

(3) The chairman of the Dublin and Belfast commissioners respectively shall be appointed by His Majesty from amongst the members of the Commission.

(4) If a vacancy occurs in the office of a commissioner by reason of death, resignation, incapacity, or otherwise, His Majesty may appoint a person to fill the vacancy.

(5) For the purpose of dealing with any matter which is to be dealt with by the commissioners jointly under this Act, a joint committee shall be appointed consisting of eight commissioners, four being appointed by each body of commissioners from amongst the members of that body.

Any matter which is to be so dealt with jointly shall be dealt with and determined by the joint committee.

(6) If a vacancy occurs amongst the members of the joint committee by reason of death, resignation, incapacity, the vacating of the office of commissioner or otherwise, the body of commissioners who appointed the person whose office is vacant shall appoint another commissioner to take his place.

(7) The provisions set out in the Second Schedule to this Act shall have effect with respect to the procedure of the commissioners.

(8) The commissioners may, with the consent of the Treasury as to number, appoint or employ such persons as they may think necessary for the execution of their duties under this Act, and may remove any person so appointed or employed, and there shall be paid to the secretary to the commissioners, and to any person appointed or employed by the commissioners, such remuneration as the Treasury may assign, and that remuneration and all expenses of the commissioners incurred with the sanction of the Treasury in the execution of this Act shall be paid out of moneys provided by Parliament.

(9) The commissioners may, if they think fit, take evidence upon any of the matters which they are directed to deal with or have power to deal with under this Act; and may, if they think fit, make any report to His Majesty containing any recommendations which in their opinion ought to be made for the purpose of better enabling them to carry out any of the powers hereby entrusted to them.

(10) The powers of the commissioners shall continue until the end of the year nineteen hundred and ten, but His Majesty may by Order in Council continue their powers for such further period not exceeding one year as His Majesty thinks fit.

FINANCIAL PROVISIONS AND PURCHASE OF LAND.

Grants in aid
of universities
and colleges.
44 & 45 Vict.
c. 52.

7.—(1) The sum of twenty thousand pounds payable under the Royal University of Ireland Act, 1881, shall, instead of being paid as provided by that Act, be paid, as to one half

thereof to the new university having its seat at Dublin, and, as to one half thereof to the new university having its seat at Belfast.

(2) There shall be annually paid out of moneys provided by Parliament for the general purposes of the new university having its seat at Belfast, and the constituent colleges of the new university having its seat at Dublin, the sums specified in Part I. of the Third Schedule to this Act.

(3) There shall be paid out of moneys provided by Parliament such sums as the governing body of either of the new universities or any of the constituent colleges of the new university having its seat at Dublin may require, and the Treasury may approve, for purchasing lands and providing or improving the necessary buildings and equipment for the university or college, not exceeding the maximum sum specified in Part II. of the Third Schedule to this Act.

(4) Any sums paid under this section shall be applied by the governing body of the university or college, as the case may be, in accordance with their charter or statutes, but no such sum shall be applied for the provision or maintenance of any church, chapel, or other place of religious worship or observance, or for the provision or maintenance of any theological or religious teaching or study:

Provided that nothing in this provision shall prevent the recognition by the governing body of the university of any professor of or lecturer in theology or divinity as a professor of the university so long as the professorship is founded and maintained entirely by means of private benefaction, or the use of any building belonging to the university or college for any teaching given by such professor, or for any other religious teaching no part of the cost of which is defrayed out of public funds. But no student shall be compelled to attend any such theological teaching, or religious instruction, and no professor of or lecturer in theology or divinity shall be eligible for membership of the General Board of Studies or of any Faculty other than the Faculty of Theology.

(5) The grants paid under this section shall be in lieu of any grants payable at the time of the passing of this Act, either out of the Consolidated Fund or moneys provided by Parliament, to or for the benefit of the Royal University of Ireland, Queen's College, Belfast, Queen's College, Cork, or Queen's College, Galway, and shall be deemed to be in full discharge of all past or present claims of any such university or college, or of any person holding or having held any office in any such university or college, to be maintained or paid out of public money, or to receive any portion of public money by way of salary, pension, allowance, or otherwise in respect of that office, and the liability to meet any such claim shall, for the purposes of this Act, be treated as a liability of the university or college in connection with which the claim arises.

Any such liability to meet a claim for pensions shall be a first charge upon any money provided by Parliament under this section for the purposes of the university or college liable to meet the claim.

(6) The governing body of each of the new universities and the governing bodies of the constituent colleges of the new university having its seat at Dublin respectively shall prepare annually, in such form as the Treasury shall direct, accounts of all receipts and expenditure, capital and income, under their control, and within three months after the expiration of the year to which the accounts relate shall transmit the same to the Controller and Auditor-General to be audited, certified, and reported upon in conformity with the powers and regulations prescribed in the Exchequer and Audit Departments Act, 1866, for rendering and auditing appropriation accounts, and the accounts, with the reports of the Controller and Auditor-General thereon, shall be laid before the House of Commons not later than three months after the date on which they were transmitted for audit, if Parliament be then sitting, and, if not sitting, within fourteen days after Parliament next assembles.

(7) Nothing in this section shall preclude any money being provided by Parliament in addition to the sums provided under this section, either in augmentation of any sums contributed for the purpose of the universities or colleges from other sources, or otherwise.

Application of
surplus of fee
fund for pur-
poses of uni-
versities and
colleges.
61 & 62 Vict.
c. 37.

8. The surplus of the fee fund mentioned in subsection two of section one hundred and twenty-two of the Local Government (Ireland) Act, 1898, shall, instead of being paid and applied as directed by that subsection, be paid and applied for such of the purposes of either of the new universities or any of the constituent colleges of the new university having its seat at Dublin as the Lord Lieutenant in Council may direct.

Purchase of
land.

9. For the purposes of the purchase of land by the governing bodies of the two new universities and of the constituent colleges of the new university having its seat at Dublin, the Lands Clauses Acts, with the exception of the provisions thereof with respect to the purchase of land otherwise than by agreement, shall be incorporated with this Act.

Power of Inter-
mediate Edu-
cation Board
and local
authorities to
assist students
at university.

10.—(1) Notwithstanding anything in any Act the Intermediate Education Board for Ireland may, out of the funds at their disposal, assist, by means of exhibitions, scholarships, bursaries, payment of fees, or otherwise, students or intending students at any university in Ireland who shall have passed a matriculation examination or some other examination prescribed by the university, and the Board may make rules for carrying this provision into effect, those rules to be made in the same manner, subject to the same provisions, and for the like matters, so far as applicable, as rules under section six of the Intermediate

Education (Ireland) Act, 1878, but the exercise by the Board of their powers under this provision shall be subject to the proviso in subsection four of section five of the said Act. 41 & 42 Vict. c. 66.

(2) The council of any county or county borough in Ireland may assist, by means of exhibitions, scholarships, bursaries, payment of fees, or otherwise, any students at any university in Ireland who are ordinarily resident in their county or borough who satisfy the council that they are qualified to profit by university instruction and are in need of assistance, and who also satisfy such tests of ability as may be prescribed by the university, and may also place any sums at the disposal of any university in Ireland or any college thereof, to be applied for any educational purposes which the council may consider will benefit their county or borough, being purposes for which moneys provided by Parliament under this Act may be applied :

Provided that in no case shall any grant under this section be subject to or conditional upon any religious qualification or be devoted to any religious purpose.

Any expenses incurred by the council of a county or county borough under this provision shall be paid, in the case of a council of a county as a county at large charge, and in the case of a county borough as expenses of the council of the borough in the execution of the Public Health (Ireland) Acts, 1878 to 1907, but the amount raised by the council of a county or county borough in any year for the purpose shall not exceed the amount which would be produced by a rate of one penny in the pound, or such higher rate as the council of the county or borough, with the consent of the Local Government Board, may fix.

PROVISIONS AS TO TRANSFER, &c.

11.—(1) Each of the two new universities is hereby empowered to hold qualifying examinations in medicine, surgery, and midwifery for the purpose of registration under the Medical Acts as if each of those universities had been a university in the United Kingdom legally qualified at the passing of the Medical Act, 1886, to grant diplomas in medicine and surgery; and the provisions of Part I. of that Act, and any enactment amending the same, shall be read and have effect accordingly. Representatives on General Medical Council. 49 & 50 Vict. c. 48.

(2) The governing body of each of the two new universities shall be entitled to choose one representative to be a member of the General Council constituted by the Medical Acts; and section seven of the Medical Act, 1886, shall be read and have effect as if the two new universities were included therein in the place of the Royal University of Ireland.

12. Sections ten and thirteen of the Solicitors Act, 1877, and sections twelve and fourteen of the Solicitors (Ireland) Act, 1898 (which relate to the admission as solicitors of graduates of universities), shall be read as if each of the two new universities Amendment of Solicitors Act. 40 & 41 Vict. c. 25. 61 & 62 Vict. c. 17.

were mentioned in those sections as well as the universities therein mentioned, and section fifteen of the Solicitors (Ireland) Act, 1898 (which relates to the admission as solicitors of persons who have attended lectures, &c.), shall be read as if each of the two new universities and the new college having its seat at Dublin were mentioned in that section as well as the universities and colleges mentioned therein.

Provisions as
to transfer of
graduates and
students

13.—(1) Every person who, at the time of the dissolution of the Royal University of Ireland, is a graduate of the university, shall be entitled—

- (a) if he was a matriculated student at Queen's College, Cork, Queen's College, Galway, University College, Dublin, or the Cecilia Street School, Dublin, to be registered as a graduate, with the corresponding degree of the new university having its seat at Dublin; and
- (b) if he was a matriculated student at Queen's College, Belfast, or Magee College, Derry, to be registered as a graduate, with the corresponding degree of the new university having its seat at Belfast; and
- (c) if he was not a matriculated student at any such college, or was a matriculated student at two or more colleges giving him the right to be registered as a graduate in both new universities, to be registered as a graduate, with the corresponding degree, either of the new university having its seat at Dublin or of the new university having its seat at Belfast, at his election.

(2) Where a matriculated student at any of the colleges specified in this section, being entitled to be registered under the foregoing provision as a graduate of the new university having its seat at Dublin, desires to be admitted as a graduate of the new university having its seat at Belfast, or, being entitled to be registered as a graduate of the new university having its seat at Belfast, desires to be admitted as a graduate of the new university having its seat at Dublin, and makes an application to the governing body of the university of which he desires to be admitted as a graduate, showing special grounds for the application, the governing body of that university may admit him as a graduate, and the provisions of this section shall apply as if in that case the university of which he is so admitted to be a graduate were the university of which he is entitled to be registered as a graduate under this section.

(3) All terms kept and examinations passed by any graduate or student in the Royal University of Ireland shall, on the dissolution of that university, be deemed to be terms kept and examinations passed at the university at which he is entitled to be registered as a graduate, if a graduate, and, in any other case, at either of the two new universities at the election of the student, and the governing body of each of the two new universities shall, so far as practicable, provide for any such students

obtaining degrees on conditions not more onerous than those under which they could obtain corresponding degrees in the Royal University of Ireland.

14.—(1) The buildings of the Royal University of Ireland and of Queen's College, Belfast (together with the equipment and appurtenances thereof), shall, by virtue of this Act and without any further assurance, be transferred to and become vested in the new university having its seat at Dublin and the new university having its seat at Belfast respectively, except such buildings of the Royal University of Ireland (if any) as may be appropriated to the new college having its seat at Dublin by virtue of a scheme made by the Dublin Commissioners under this section. Transfer of property.

(2) The commissioners may jointly make a scheme—

- (a) For transferring to one or other of the new universities any property, real or personal, of the Royal University of Ireland or Queen's College, Belfast (including trust property), not transferred by virtue of the foregoing provisions of this section:
- (b) For transferring to one or other of the new universities any rights, powers, liabilities, or obligations of the Royal University of Ireland or Queen's College, Belfast, or any members or officers thereof, or attaching to the property thereof:
- (c) For making any alteration in the terms of any trust which may be rendered necessary or proper in consequence of the dissolution of the Royal University of Ireland or Queen's College, Belfast:

Provided that the scheme shall make provision that any property held in trust solely for Queen's College, Belfast, shall be transferred to the new university having its seat at Belfast.

(3) The commissioners may by their scheme as respects any property not transferred to the new university having its seat at Belfast, instead of transferring that property to the new university having its seat at Dublin, provide for the property being appropriated as between that university and the new college having its seat at Dublin, in such manner as may be determined under a scheme made by the Dublin Commissioners, and the Dublin Commissioners may make such a scheme accordingly and may also by the same or a separate scheme provide for the appropriation to the new college having its seat at Dublin of any buildings of the Royal University in Ireland.

(4) Any buildings or property held by the Commissioners of Public Works in Ireland for the purpose of Queen's College, Belfast, shall, for the purposes of this section, be deemed to be property of Queen's College, Belfast, and any buildings or property held by those Commissioners for the purpose of Queen's College, Cork, and Queen's College, Galway, shall, by virtue of this Act, become vested in those colleges respectively.

(5) Where any property transferred or appropriated to either of the two new universities, or to the new college having its seat at Dublin, by virtue of this section or any scheme made thereunder, is a private endowment subject to trusts, the governing body of the university or college shall in the application of that property as far as possible give effect to the trusts affecting it, and provision shall be made for that purpose by the scheme.

First appointment to offices in the new universities and in the constituent colleges.

15.—(1) The first appointment to all offices in the new university having its seat at Dublin and its constituent colleges, and in the new university having its seat at Belfast shall, except as provided by the charter of the university or college, be made by the Dublin Commissioners and the Belfast Commissioners respectively, and the offices of all officers of Queen's College, Cork, and Queen's College, Galway, shall be deemed to be vacant on the appointed day (notwithstanding that those colleges are not dissolved), and to be subject to the provisions of this section.

(2) Any appointment made under this section shall (except where the appointment is an appointment to an equivalent office of an existing officer whose tenure of his existing office is not limited so as to continue for a definite number of years) be temporary only and shall not have effect after the expiration of seven years from the day appointed for the dissolution of the Royal University of Ireland.

(3) If before the expiration of the time so limited a casual vacancy occurs in any such office, the vacancy may be filled by the commissioners by whom the original appointment was made under this section, or, if it occurs after the powers of the commissioners have ceased, in the manner provided by the charter or statutes of the university or college in which the office is vacant, but in the case of an appointment which by virtue of this section is temporary only the appointment shall not have effect after the expiration of the time limited.

(4) On the day on which any temporary appointment under this section ceases to have effect, the person appointed under this section shall retire from office, and the vacancy shall be filled in manner provided and on conditions specified by the statutes of the university or college, but any person so retiring from office may be re-appointed, and in the case of an existing officer who holds his office during the pleasure of His Majesty shall be so re-appointed if his Majesty directs, notwithstanding anything in the statutes of the university or college.

Existing officers.

16.—(1) Schemes for the employment of existing officers shall be made, as respects the existing officers of the Royal University of Ireland, by the Dublin and Belfast Commissioners jointly, and, as respects existing officers of Queen's College, Belfast, by the Belfast Commissioners, and, as respects existing officers of Queen's College, Cork, and Queen's College, Galway, by the Dublin Commissioners.

(2) Schemes so made shall provide, so far as practicable and expedient, for equivalent offices being offered, in either one of the two new universities or in the new college having its seat at Dublin, to existing officers of the Royal University of Ireland, and shall provide for equivalent offices being offered in the new university having its seat at Belfast to existing officers of Queen's College, Belfast, and in Queen's College, Cork, and Queen's College, Galway respectively, to existing officers of those colleges, but no such provision need be made by the scheme for any existing officers who are appointed to offices in either of the two new universities, or of any of the constituent colleges of the new university having its seat at Dublin by virtue of the charter of the university or college.

(3) If any such existing officer of the Royal University is not offered an equivalent office in accordance with the provisions of this section, or accepts an office in either of the two new universities or in any of the constituent colleges of the new university having its seat at Dublin, which is not an equivalent office, he shall be entitled to such compensation, either in respect of the loss of office or in respect of the difference between his existing office and the office which he accepts, as may be determined by the Commissioners jointly :

Provided that the compensation to be paid in the case of any such existing officer not offered an equivalent office shall be fixed upon the basis of abolition of office.

Where an existing officer is entitled to compensation, and the tenure of his office was limited so as to continue for a definite number of years, the Commissioners shall, in assessing compensation, take into consideration any probability that existed of the appointment of the officer being renewed after the expiration of his term of office.

(4) The compensation payable under this section shall be paid in the case of existing officers of the Royal University of Ireland out of the funds of such one of the two new universities, or out of the funds of those universities in such proportions, as the Dublin and Belfast Commissioners jointly determine, and, where any existing officer entitled to compensation receives any appointment in either of the two new universities, or in any of the constituent colleges of the university having its seat at Dublin, the Commissioners in assessing the amount of compensation shall have regard to any advantage derived from that appointment.

(5) If any existing officer, who holds his existing office during the pleasure of His Majesty or the Lord Lieutenant, or is removable only by His Majesty or the Lord Lieutenant, in pursuance of this Act or of any charter granted thereunder is offered and accepts or is appointed to an office in either of the two new universities or in any of the constituent colleges of the new university having its seat at Dublin, he shall, notwithstanding anything in this Act or in the charter or statutes of the university or college, hold the office which he accepts during the pleasure of His Majesty or the Lord Lieutenant, as the case may be.

(6) Any existing officer who accepts an equivalent office in pursuance of this Act shall, for the purposes of superannuation and pension, be deemed to have continued in the same office.

(7) The Commissioners, by their schemes under this section, shall provide for the continuation, apportionment, and application of any pension or superannuation fund established for the benefit of any officers of the Royal University of Ireland, or of Queen's College, Belfast, or Queen's College, Cork, or Queen's College, Galway.

(8) Where an existing officer holding an office to which the Superannuation Acts, 1834 to 1892, apply accepts in pursuance of this Act an equivalent office, that officer shall have the same right as respects any superannuation allowance or gratuity as he would have had if those Acts continued to apply to his service in the office accepted or in any other office in either of the two new universities or any of the constituent colleges of the new university having its seat at Dublin to which he may be thereafter appointed, but the superannuation allowance or gratuity shall be paid out of the funds of the university or college of which he is an officer when the allowance or gratuity becomes payable.

If any question arises whether any person has any right to a superannuation allowance or gratuity in pursuance of this provision, or as to the amount of any such superannuation allowance or gratuity, that question shall be referred to the Treasury, and the decision of the Treasury on the question shall be binding on all parties.

Nothing in this provision shall prevent the governing body of either of the two new universities, or any of the constituent colleges of the new university having its seat at Dublin, giving any superannuation allowance to any officer holding an office to which the Superannuation Acts, 1834 to 1892, apply otherwise than in pursuance of this provision.

Appeals; and
effect of
schemes.

17.—(1) An appeal may be presented to the Lord Lieutenant in Council—

- (a) against any scheme of the Commissioners relating to the transfer of property, or any provision thereof, by the governing body of either of the new universities or of the new college having its seat at Dublin, or by any person directly affected by the scheme; and
- (b) against any scheme in relation to existing officers or any provision thereof, or any determination of the Commissioners with respect to the payment of compensation, by the governing body of either of the new universities or of Queen's College, Cork, or Queen's College, Galway, or by any existing officer.

(2) Any such appeal shall be heard by the Irish Universities Committee, who shall advise the Lord Lieutenant as to the appeal.

(3) The decision of the Lord Lieutenant in Council on any appeal shall be binding on all parties, and any scheme or

provision of a scheme may be modified by the Lord Lieutenant in Council in accordance with his decision on the appeal.

(4) A scheme made by the Commissioners under this Act shall have effect as if enacted in this Act, and, if it is modified on appeal under this section, shall have effect as so modified, and the Commissioners shall cause notice of all such schemes to be published in the Dublin Gazette.

18.—(1) There shall be a committee of the Privy Council in Ireland styled the Irish Universities Committee. The committee shall consist of such number of members of the Privy Council in Ireland, not being less than five, as the Lord Lieutenant may think fit to appoint, two at least being persons who are or have been judges of the supreme court. Irish Universities Committee.

(2) The powers and duties of the Irish Universities Committee may be exercised and discharged by any three or more members of the committee, so long as one of those members is a person who is or has been a judge of the supreme court, and, in the case of appeals under section seventeen of this Act, then so long as two of those members are persons who are or have been judges of the supreme court.

(3) The costs of all parties of and incident to the hearing of any petition or appeal under this Act which is heard by the Irish Universities Committee shall be in the discretion of the committee.

(4) The Lord Lieutenant in Council may make rules generally for regulating the procedure of the Irish Universities Committee, and may, by those rules, prescribe the time within which any appeal under this Act may be made, and the mode in which any costs allowed under this Act may be recovered.

19.—(1) For the purposes of this Act an office shall be deemed to be an equivalent office if the duties of the office are similar or analogous to those of the existing office, and if the remuneration and tenure of the office are not worse than those of the existing office. Definitions.

(2) For the purposes of this Act the expression "officer" includes any president, professor, fellow, lecturer, secretary, bursar, registrar, or other officer engaged in the teaching or management of the business of the Royal University of Ireland, Queen's College, Belfast, Queen's College, Cork, or Queen's College, Galway, or any servant in regular employment in that university or college, and the expression "existing officer" means any such officer who is holding office at the time of the commencement of this Act.

SUPPLEMENTAL.

20. This Act shall come into operation on such day, not being more than two years after the passing thereof, as the Lord Commence-
ment of Act.

Lieutenant may appoint, and different days may be appointed for different purposes and for different provisions of this Act.

Any reference in any provision of this Act to the appointed day shall be construed as a reference to the day appointed under this section for the commencement of the operation of that provision.

Repeal and
short title.

21.—(1) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) This Act may be cited as the Irish Universities Act, 1908.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

CONSTITUTION OF GOVERNING BODIES.

A.—*Governing Body of the new University having its seat in Dublin.*

The Chancellor of the University	-	-	1
The Presidents of the constituent Colleges	-	-	3
Persons nominated by His Majesty, of whom one at least shall be a woman	-	-	4
Elected by the Governing Body of the new College having its seat in Dublin, three at least being members of the Academic Council of the College	-	-	6
Elected by the Governing Body of Queen's College, Cork, two at least being members of the Academic Council of the College	-	-	4
Elected by the Governing Body of Queen's College, Galway, two at least being members of the Academic Council of the College	-	-	4
The Registrar	-	-	1
Members of Convocation elected by Convocation of the University	-	-	8
Co-opted	-	-	4
In all	-	-	<u>35</u>

B.—*Governing Body of the new University having its seat at Belfast.*

The Chancellor	-	-	1
The Pro-Chancellors	-	-	2 or 3
The President of the University who is ex-officio Vice-Chancellor	-	-	1

Carried forward - 4 or 5

Brought forward	-	4 or 5
Persons nominated by His Majesty, of whom one at least shall be a woman	-	4
Professors of the University elected by the Academic Council	-	6
Members of Convocation elected by Convocation	-	8
The Registrar	-	1
The President for the time being of the Students' Representative Council, if a Graduate of the University	-	1
Elected by the Executive Committee of the Better Equipment Fund	-	3
Elected by the Belfast Technical Instruction Committee	-	1
A person representing the Corporation of Belfast, to be elected by the Corporation	-	1
A person representing the Belfast Chamber of Commerce, to be elected by the Council of the Chamber	-	1
A representative of the Royal Victoria Hospital, Belfast, to be elected by the Board of Management of that Hospital	-	1
Co-opted	-	4
In all	-	<u>35 or 36</u>

In this Schedule the expression "Academic Council," as applied to any University or College, means the Council to be constituted by that name under the Charter of the University or College.

SECOND SCHEDULE.

Section 6.

PROVISIONS APPLICABLE TO COMMISSIONERS.

1. If the chairman of the Commissioners is absent from any meeting, the Commissioners present shall choose a chairman.
2. The powers of the Commissioners may be exercised at a meeting at which a majority of the Commissioners are present.
3. In case of an equality of votes on a question at a meeting, the chairman of the meeting shall have a second or casting vote in respect of that question.
4. The Commissioners shall have a common seal which shall be judicially noticed.
5. Any act of the Commissioners shall not be invalid by reason only of any vacancy in their body ; but, if at any time, and as long as, the number of persons acting as Commissioners is less than five, the Commissioners shall discontinue the exercise of their powers.
6. At each meeting of the joint committee the Commissioners present shall choose a chairman for the meeting: In case of an equality of votes on any motion as to the chairmanship of the meeting, the question shall be decided by lot.
7. The powers of the joint committee may be exercised at a meeting at which at least five members of the joint committee are present.
8. In case of an equality of votes on any question at a meeting of the joint committee (other than the question of the chairmanship of a meeting), the chairman of the meeting shall have a second or casting vote in respect of that question.

9. The joint committee shall have a common seal, which shall be judicially noticed.

10. Any act of the joint committee shall not be invalid by reason only of any vacancy in their body.

GENERAL.

11. Subject to the foregoing provisions, the Commissioners and the joint committee may regulate their proceedings in such manner as they think fit.

Section 7.

THIRD SCHEDULE.

PART I.

	£
The new university having its seat at Belfast -	18,000
The new college having its seat at Dublin -	32,000
Queen's College, Cork -	20,000
Queen's College, Galway -	12,000
	<u>£82,000</u>

PART II.

	£
In the case of the new university having its seat at Belfast, the maximum sum shall be -	60,000
In the case of the new university and college having their seats at Dublin, the combined maximum sum shall be -	150,000
In the case of Queen's College, Cork, the maximum sum shall be -	14,000
In the case of Queen's College, Galway, the maximum sum shall be -	6,000
	<u>£230,000</u>

Section 21.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
8 & 9 Vict. c. 66.	The Queen's Colleges (Ireland) Act, 1845.	The whole Act.
42 & 43 Vict. c. 65.	The University Education (Ireland) Act, 1879.	The whole Act.
44 & 45 Vict. c. 52.	The Royal University of Ireland Act, 1881.	Section one, from ("The sums so provided") down to the end of the section and section two.